

# Bharti Banjare vs Bhimsen Banjare on 16 August, 2023

Neutral Citation  
2023:CGHC:21098

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

TPC No. 80 of 2021

- Bharti Banjare W/o Bhimsen Banjare, Aged About 31 Years R/o C/o Panchuram Tondon, Old Indian Gas Godown Road, Amaguda, Lalbag, Jagdalpur, District Bastar Chhattisgarh, District : Bastar(Jagdalpur), Chhattisgarh

---- Petitioner

Versus

- Bhimsen Banjare S/o Narayanlal Banjare, Aged About 35 Years R/o Sadguru, Chaya Ward No. 50, Borsibhata, Durg, District Durg Chhattisgarh, District : Durg, Chhattisgarh

---- Respondent

For Petitioner : None present  
For Respondent : None present.

Hon'ble Shri Justice Sachin Singh Rajput

Order On Board

16/08/2023

This transfer petition is pending since the year 2021 and this Court on 10.01.2022 has stayed the proceedings in the Case No. 932/2019 pending before the Principal Judge, Family Court, Durg therefore this Court is inclined to decide this application on the basis of records available in the case in hand.

2. The petitioner/wife has prayed seeking relief of transfer of application preferred by the respondent-husband under Section 13 of the Hindu Marriage Act, 1955 (for short the "Act of 1955"), case bearing No. 932/2019 (Bhimsen Banjare Vs. Bharti Banjare) before the Principal Judge, Family

Court, Durg to the Family Court, Jagdalpur, Neutral Citation 2023:CGHC:21098 District Bastar.

3. As per the pleading of the application, the marriage between the petitioner-wife and respondent-husband was solemnized according to Hindu rites and rituals in the year 2012 and out of their marriage a son namely Ansh Banjare was born. It has been further pleaded in the application that the respondent-husband with an intention to insult her, uttered abusive words in phone and also tried to harass her on petty issues therefore, FIR under Section 509 IPC, 1860 was filed by the petitioner-wife. It is further pleaded that the son is with the respondent-husband and the petitioner-wife being mother, has filed an application for custody of the child under Sections 7 & 12 of the Guardians and Wards Act, 1890 before the learned Family Court, Jagdalpur, district Bastar CG. It has been further stated that the application under Section 13 of the Hindu Marriage Act 1955 before the learned Principal Judge, Family Court Durg bearing Case No 932/2019 may be transferred to the Family Court Jagdalpur.

4. No reply as such has been filed by the respondent-husband. However, some medical documents of the respondent-husband was filed with a covering memo.

5. Considering the entire facts and circumstances of the case, considering the fact that the distance between Jagdalpur and Durg is about more than 300 kms. and in view of the judgment of the Hon'ble Apex Court in the matter of NCV Aishwarya Vs. A.s.Saravana Karthik Sha reported in 2022 LiveLaw (SC) 627 wherein it has been held that :

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8. It is not disputed that the appellant is the resident of Chennai and that the appellant's husband-respondent herein is the resident of Vellore and he is employed.

The appellant who is 21 years old does not have any source of income of her own as she is not employed and is totally dependent on her parents for her livelihood. In order to attend the court proceedings of the case filed by her husband at Vellore she has to travel alone all the way from Chennai to Vellore as her parents are not in a position to accompany her on account of their old age.

Secondly, the appellant has also filed a petition, H.M.O.P. No.1741 of 2021, for restitution of conjugal rights and another petition, M.C. Sr. No.672 of 2021, for her maintenance before the Family Court at Chennai.

9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socioeconomic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while

considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried together by the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions.

11. As noticed above, the appellant is a young lady aged about 21 years, staying alone along with her aged parents. Under the above circumstances, it is difficult for her to travel all the way from Chennai to Vellore to attend the court proceedings of the case filed by the respondent seeking annulment of marriage. Further, it is also just and proper to club all the three cases together to avoid multiplicity of the proceedings and conflict of decisions. Therefore, the High Court was not justified in rejecting transfer petition bearing TR.C.M.P.No.473 of2020, fled by the appellant herein.

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6. Thus considering the above factual position this Court is of the considered view that it would be in the interest of justice if the application filed by the husband under Section 13 of the Act of 1955 in Case No. 932/2019 (Bhimsen Banjare Vs. Bharti Banjare) pending in the Family Court, Janjgir is transferred to Family Court, Jagdalpur, District Bastar. The parties are directed to appear before Family Court, Jagdalpur on 22nd September 2023. In case the respondent-husband fails to appear at Family Court, Jagdalpur on that day, learned Judge presiding over the said Court may issue notice to him for a date to be fixed by it. Let the records of the said case be sent to Family Court Jagdalpur from Family Court, Durg as early as possible. Since the application for divorce was filed in the year 2019 and therefore the Family Court shall make all the endeavour to conclude the pending cases within a reasonable period of time.

7. The petition is accordingly allowed.

8. Copy of the same be sent to the Family Court, Jagdalpur and Durg. Copy of the order may also be sent to the concerned parties.

Sd/-

(Sachin Singh Rajput) Judge suguna